

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 3544 of 2014

Humayun Kabir and another.

.....Convict-appellants.

-Versus-

The State.

.....Respondent.

Mr. Md. Motiur Rahman, Advocate

.....For the convict-appellant No.1.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.... For the respondent.

Heard on 08.07.2014 and
Judgment on 09.07.2024.

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant Nos. 1. Humayun Kabir and 2. Jahangir Kha is directed against the impugned judgment and order of conviction and sentence dated 15.04.2014 passed by the learned Additional Sessions Judge, 1st Court, Bagerhat in Sessions Case No. 231 of 2005 arising out of G.R. No. 145 of 2003 corresponding to Shoronkhola Police Station Case No. 2 dated 08.12.2003 convicting the accused-appellants and 7 others under Section 395 of the Penal Code and sentencing them thereunder to suffer rigorous imprisonment for a period of 05(five) years and to pay a fine of Tk.

5,000/= (five thousand) each in default to suffer rigorous imprisonment for 06(six) months more each.

The prosecution case, in brief, is that one Md. Moksud Akon as informant on 08.12.2003 at 18.30 hours lodged an Ejahar with Shoronkhola Police Station against the accused appellants and 10 others under sections 395/397/412 of the Penal Code stating, inter-alia, that the informant along with others caught fishes which valued at Tk. 20,000/- (twenty thousand) in the Bay of Bengal from 01.12.2003 to 04.12.2003 and ultimately, the informant party on 04.12.2003 at night about 11.00 hours cast an Anchor for catching fish in the river namely, Kochikhali under Shoronkhola Police Station and thereafter, on 05.12.2003 about 1.00 am a troller reached to their fishing Troller and thereafter the accused persons after being armed with Ramda, Chapati, Bogi Dao dealt so many blows on the informant party and forcibly looted away fishes from their Troller, the dacoits also looted 1 (one) Tape recorder, 1(one) 12(twelve) Volt Battery, 7(seven) Container Diesel and Charger light and they broken the pipe and the engine of the Troller and on the following morning at about 7 am another Troller named “Sufian” came to the place of occurrence and helped the informant party resulting the informant party returned Borguna Bazar on 06.12.2003 at night about 11.00 hours

and thereafter, some of the fishermen of the victim Troller with the help of local people caught hold of the accused namely, Kanu Hawlader and Mujibor Rahman, who confessed their participation of the alleged dacoity and also on interrogation confessed that the looted fishes and other articles from the informant's Troller which were kept in the western side of Borguna Bazar and as per the confession of the accused persons the informant party went to the Troller of the accused persons and with the help of people caught hold of accused namely Humayun Kabir, Panna, Rustom Kha, Md. Halim, Konu Hawlader and Mujibor Rahman and some of the accused managed to scape. Thereafter, the informant party seized the looted articles and lodged the case.

Upon the aforesaid First Information Report, Shoronkhola Police Station Case No. 2 dated 08.12.2003 under Sections 395/397/412 of the Penal Code was started against the accused appellants and 10 others.

Police after completion of investigation submitted charge sheet against the accused appellants and 10 others, vide charge sheet No. 24 dated 26.03.2004 under sections 395/397/412 of the Penal Code.

Ultimately, the accused appellants and 10 others were put on trial before the learned Additional Sessions Judge, 1st Court, Bagerhat to answer a charge under Sections

395/397/412 of the Penal Code to which the accused-appellants and others pleaded not guilty and claimed to be tried stating that they have been falsely implicated in the case.

At the trial, the prosecution examined in all 8(eight) witnesses to prove its case and exhibited some documents, while the defence examined none.

On conclusion of trial, the learned Additional Sessions Judge, 1st Court, Bagerhat by the impugned judgment and order dated 15.04.2014 found the accused appellants and 7 others guilty under Sections 395 of the Penal Code and sentenced them thereunder to suffer rigorous imprisonment for a period of 05(five) years and to pay a fine of Tk. 5,000/= (five thousand) in default to suffer rigorous imprisonment for 06(six) months more each.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 15.04.2014, the accused-appellants preferred this criminal appeal.

Mr. Md. Motiur Rahman, the learned Advocate appearing for the convict-appellants submits that the accused appellants are out and out innocent, they have been made scapegoat in this case mere on suspicion. He adds that in this case prosecution examined in all 8 witnesses out of whom none of them testified against the appellants connecting with the crime or they took part in dacoity and forcibly looted away fishes or goods. Finally, the learned Advocate submits

that in this case prosecution having failed to examine some vital witnesses including the informant of the case although in the facts and circumstances of the case the informant was vital witness of the case and non-examination of the informant of the case creates a serious doubt as to credibility of the prosecution case as per provisions of case under section 114(g) of the Evidence Act to the effect that had they been examined in this case they would not have supported the prosecution case and the benefit of this defect should go to the accused appellants although the trial Judge without considering all these vital aspects of the case from a correct angle mechanically found the accused appellants guilty along with the other accused under section 395 of the Penal Code and as such, the impugned judgment and order of conviction and sentence dated 15.04.2014 is liable to be set-aside.

Ms. Shahida Khatoon, the learned Deputy Attorney General, on the other hand, supports the impugned judgment and order, which was according to her just, correct and proper.

Having heard the learned Advocate and the learned Deputy Attorney General and having gone through the materials on record including the impugned judgment and order of conviction and sentence, now only the question calls for consideration in this appeal is whether the trial Court committed any error in finding the accused-

appellants guilty of the offence under Section 395 of the Penal Code.

On scrutiny of the record, it appears that the prosecution to prove the allegation of dacoity against the accused appellants and 10 others examined in all 8 witnesses out of whom PW-1, S.I. Md. Ismail stated in his deposition that he recorded the case on getting the FIR from the informant of the case on 08.12.2003. This witness proved the FIR as exhibit-2 and his signature thereon as exhibit 2/1. PW-2, Md. Shorab Hossain stated in his deposition that- “ বৈরাগী মাছের কথা শুনে আমার মনে দাগ কাটে এবং আমরা ওদের ফলো করি। আসামী কবু হাওলাদার ও মজিবুর রহমানকে সনাক্ত করি। ওদের চা খাওয়ার কথা বলে, গদিতে নিয়ে এ্যারেষ্ট করে ফেলি এবং বাসায় ফোন দেই। ডাকাতদের সাথে আরেকজন হুমায়ুন কবির ফিলিং বোট চলে যায়। বাকী ২ জনকে নৌকা নিয়া যাওয়ার কথা। ঐ ২ জনক এ্যারেষ্ট করিয়া ফেলি। এরপর আমরা ডাকাতদের ফিসিং বোটটির উদ্দেশ্য রওয়ানা করি। সেখানে গিয়া হুমায়ুন কবির এবং আরও একজনকে ধৃত করিতে সক্ষম হই। চারদিকে জাগহর চিৎকার, ডাকাত ডাকাত পড়। ২জন ডাকাত নদী বাপ দিয়া পালানোর চেষ্টা করে। তারা নদীর উত্তর পাশে জনগন কর্তৃক ধৃত হয়। এরই মধ্যে পুলিশ চলে আসে এবং ডাকাতির ট্রেলার উঠে।” This witness in his cross-examination stated that “আসামীদের পূর্বে চিনতাম না।” PW-3, Md. Jahangir, stated in his deposition that at night 1.00 AM dacoity took place on Bangopo Sagar and dacoits took away fishes, ice, 1(one) Tap recorder, 7 container diesel, Mobil etc. PW-4, Abdul Jalil, gave evidence in support of the prosecution case. PW-5, Md. A. Salam, stated in his deposition that police came to

the occurrence and took his signature, he knows nothing. PW-6, Md. Khokon, was tendered. PW-7. S.I. Md. Abul Kalam, who investigated the case. This witness stated in his deposition that during investigation he visited the place of occurrence, prepared sketch-map, and examined the witnesses under section 161 of the Code of Criminal Procedure. This witness deposed that after completion of investigation submitted charge sheet against the 12 accused persons under Sections 395/397/412 of the Penal Code. P.W-8, S.I. Md. Barkat Hossen, who prepared the seizure list. This witness proved the seizure list as exhibit-5 series.

On a close analysis of the above quoted evidence together with the FIR, charge sheet and other materials on record, it appears that save and except the PW-2 no other witnesses testified a single word against the accused appellants connecting with the crime. Besides, in this case no incriminating articles were recovered from the accused appellants. It is thus difficult to believe that the appellants were actually involved with the crime under Sections 395 of the Penal Code. Besides, I have already indicated that in this case a number of charge sheeted witnesses, specially some of the important witnesses including the informant of the case have not been examined by the prosecution which calls for a presumption under section 114(g) of the Evidence Act to the effect that had they been examined in this case they

would not have supported the prosecution case and the benefit of this defect will go to the accused appellants.

In the facts and circumstances of the case and the evidence on record, it must be held that the prosecution failed to prove charge of dacoity under Section 395 of the Penal Code against the accused appellants beyond reasonable doubts. Consequently the appeal succeeds.

In the result, the appeal is allowed and the impugned judgment and order of conviction and sentence dated 15.04.2014 passed by the learned Additional Sessions Judge, 1st Court, Bagerhat in Sessions Case No. 231 of 2005 arising out of G.R. No. 145 of 2003 corresponding to Shoronkhola Police Station Case No. 2 dated 08.12.2003 so far as it relates to the accused-appellants is set-aside and they are acquitted of the charge levelled against them.

Accused appellant, Humayun Kabir and Jahangir Kha are discharged from their bail bonds.

Send down the lower Court records at once.